

TERMS OF SERVICE AGREEMENT BETWEEN NOVA GLOBAL CORP. AND HORIZON SERVICES INC.

Between: **Nova Global Corp.** (Provider) and **Horizon Services Inc.** (User)

Effective Date: 2022-06-23

Termination Date: 2025-06-23

Governing Law: the laws of the State of Delaware

1. Dispute Resolution

Any dispute arising out of or in connection with this Agreement shall first be submitted to senior management of both Parties for resolution within thirty (30) days. If unresolved, disputes shall be referred to binding arbitration under the Arbitration and Conciliation Act, 1996. The seat of arbitration shall be Noida. The award shall be final and binding.

2. Non-Solicitation

During the term of this Agreement and for a period of twelve (12) months after its termination, neither Party shall directly or indirectly solicit or recruit any employee or contractor of the other Party who was involved in the performance of this Agreement, without prior written consent.

3. Scope of Services

Nova Global Corp. shall provide to Horizon Services Inc. the following services as detailed in Schedule A attached hereto: project management, technical implementation, quality assurance, documentation, and post-deployment support. Any modification to the scope of services must be agreed in writing by both Parties.

4. Entire Agreement

This Agreement, together with all Schedules and Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, and understandings of any kind, whether written or oral.

4.99. Waiver of Rights

Horizon Services Inc. hereby irrevocably waives any and all rights it may have under applicable consumer protection laws, data protection laws, and any other statutory rights to the fullest extent permitted by law. Horizon Services Inc. further waives the right to participate in any class action or collective proceeding against Nova Global Corp..

5. Representations and Warranties

Each Party represents and warrants that: (a) it has full power and authority to enter into this Agreement; (b) this Agreement has been duly authorised and constitutes a valid, binding obligation; (c) the execution, delivery, and performance of this Agreement do not violate any applicable law, regulation, or third-party agreement.

6. Audit Rights

Horizon Services Inc. or its authorised representative shall have the right, upon giving fifteen (15) days' written notice, to audit Nova Global Corp.'s records relating to the Services and payments under this Agreement. Such audit shall be conducted during normal business hours and shall not unreasonably disrupt Nova Global Corp.'s operations. The cost of the audit shall be borne by Horizon Services Inc., unless the audit reveals an overcharge of more than five percent (5%), in which case Nova Global Corp. shall bear the cost.

7. Payment Terms

Horizon Services Inc. shall pay Nova Global Corp. a fee of Rs. 1,38,00,000 (Rupees One crore, thirty-eight lakh Only) for the Services rendered under this Agreement. Payment shall be made within thirty (30) days of receipt of an invoice. All amounts are exclusive of applicable taxes, which shall be borne by Horizon Services Inc.. Late payments shall attract interest at the rate of eighteen percent (18%) per annum.

8. Limitation of Liability

In no event shall either Party be liable to the other for any indirect, incidental, special, consequential, or punitive damages, including loss of profits or data, even if advised of the possibility thereof. The aggregate liability of either Party under this Agreement shall not exceed Rs. 1,38,00,000 (Rupees One crore, thirty-eight lakh Only). This limitation does not apply to obligations arising from Clause 5 or indemnification obligations.

9. Confidentiality

Each Party agrees to keep confidential all Confidential Information received from the other Party. This obligation shall survive termination of this Agreement for a period of three (3) years. Disclosure is permitted only to employees or advisors who have a need to know and are bound by obligations at least as restrictive as those set forth herein.

10. Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable. The validity and enforceability of the remaining provisions shall not be affected.

11. Termination

Either Party may terminate this Agreement by giving 90 days' written notice to the other Party. Either Party may terminate immediately upon written notice if the other Party commits a material breach that is not cured within thirty (30) days of receipt of written notice of such breach. Upon termination, Horizon Services Inc. shall pay for all Services rendered up to the date of termination.

12. Data Protection

Each Party shall comply with all applicable data protection laws and regulations. Nova Global Corp. shall process personal data of Horizon Services Inc.'s employees or customers only as necessary to perform the Services and strictly in accordance with Horizon Services Inc.'s written instructions. Nova Global Corp. shall implement appropriate technical and organisational measures to protect such data.

13. Assignment

Neither Party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party. Any purported assignment in violation of this clause shall be null and void. Notwithstanding the foregoing, either Party may assign this Agreement to an affiliate without consent, provided it gives thirty (30) days' prior written notice.

14. Force Majeure

Neither Party shall be liable for any failure or delay in performance under this Agreement (other than payment obligations) to the extent caused by circumstances beyond the reasonable control of the affected Party, including but not limited to acts of God, war, terrorism, riots, epidemics, government actions, or internet or telecommunications failures. The affected Party shall promptly notify the other.

IN WITNESS WHEREOF

Provider

Nova Global Corp.

Signature: _____

Name: _____

Title: _____

Date: _____

User

Horizon Services Inc.

Signature: _____

Name: _____

Title: _____

Date: _____